THE STATE
versus
TINASHE MUDZVITI

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 10 March 2026

Criminal Review Judgment

MUSITHU J:

1. The record of proceedings in this matter was placed before me for review in terms of s 58(3)(b) of the Magistrates Court Act [Chapter 7:10], together with an accompanying note from the learned regional magistrate who scrutinised the proceedings.

2. The learned regional magistrate expressed the view that the trial court misdirected itself by charging the accused person in terms of s 70(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] ("the Code") instead of proceeding under s 64(2) and preferring a charge of rape.

3. The background facts of the matter are as follows. The accused person, Tinashe Mudzviti, a male adult aged 18 years, was arraigned before the Magistrates Court sitting at Bindura facing two counts of having sexual intercourse with a young person in contravention of s 70(1) of the Code. The complainant was aged 14 years at the time of the alleged offences.

4. The accused pleaded guilty and was convicted on his own plea. He was sentenced as follows:

> "…12 months imprisonment of which 4 months imprisonment is suspended for 5 years on condition accused does not within that period commit any offence of a sexual nature involving a child as defined in section 61 of the Criminal Law Codification and Reform Act for which upon conviction accused is sentenced to imprisonment without option of a fine. The remaining 8 months imprisonment is suspended on condition accused performs 280 hours of community service at Rusununguko clinic with effect from 27/11/25 and must be performed within 9 weeks of that date…"

5. Upon scrutiny of the record of proceedings, the learned Regional Magistrate queried the propriety of the charge. The learned Regional Magistrate was of the view that by reason of the complainant's age, the matter fell squarely within the ambit of section

64(2) which requires that in such circumstances the proper charge should ordinarily be rape, save where evidence to the contrary is established. It was the regional magistrate's considered view that the issue of whether or not the complainant was capable of giving consent was a triable issue and as such the proper charge should have been rape

6. This observation, however, raises a pertinent question as to the correct manner in which section 64(2) ought to interact with section 70 of the Code, particularly in circumstances where the complainant falls within the age bracket of twelve to fourteen years.

ISSUE FOR DETERMINATION

7. Whether the trial court misdirected itself in charging and convicting the accused under s 70 instead of proceeding in terms of s 64(2) of the Code.

ANALYSIS

8. The issue that exercised the mind of the court hinges on the proper interpretation and application of s 64(2) of the Code. Section 64 (2) reads as follows:

> "(2)A person accused of engaging in sexual intercourse, anal sexual intercourse or other sexual conduct with a young person above the age of twelve years but of or below the age of fourteen years shall be charged with rape, aggravated indecent assault or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person or sodomy, unless there is evidence that the young person—
>
> (a)was capable of giving consent to the sexual intercourse, anal sexual intercourse or other sexual conduct; and
>
> (b)gave his or her consent thereto." *My emphasis*

9. What is clear from the above provision is that it governs sexual conduct involving children aged above 12 years but below 14 years. The operative word in that provision is "unless." It introduces an exception which is grounded in the evidence placed before the court. The provision provides that the accused person must be charged with rape, unless there is evidence that, the child was capable of giving consent and the child did in fact give consent.

10. Section 70, on the other hand, criminalises sexual intercourse with a young person under the age of eighteen years, even where such intercourse was consensual. The difficulty that sometimes arises in practice is determining when a case involving a

complainant aged between 12 and 14 should proceed under s 64(2) and when it may properly fall under s 70.

The Age of the Complainant and the Interaction Between s 64(2) and s 70

11. At the time of the occurrence of the alleged act, the complainant was 14 years and 7 months old. This places her outside the age bracket contemplated in s 64(2) of the Act, which specifically addresses sexual intercourse with a young person above the age of twelve but of or below the age of fourteen. Once the complainant is above the age of fourteen, the matter no longer falls within the ambit of that provision. Instead, it falls to be considered under s 70, which criminalises sexual intercourse with a young person under the age of eighteen, even where such intercourse occurs with the young person's consent.

12. Children within the 12 to 14 year age bracket occupy a distinctive position in the Code. They are not treated in the same manner as children below 12 years, who are regarded in law as completely incapable of consenting to sexual intercourse. Instead, the law creates a rebuttable presumption of incapacity. In *S v Promise Moyo* HB 55/25, the court carefully explained the nature of this presumption and the circumstances in which a departure from a rape charge is justified. The learned judge stated:

> "Where there is evidence that the child was capable of consenting but did not consent, the offence charged must be rape under section 65[1] of the Code. In such circumstances, the State must not and need not charge the contravention of section 64 (2). Where the child was capable of consenting and did consent, then the offender cannot be accused of the crime of rape but with that of contravening section 70 [1] of the Code. These are prosecutorial issues, and the court must also be on guard for them.."

13. In the present matter, the complainant having been 14 years and 7 months old at the time of the alleged offence, the trial magistrate was correct to proceed under s 70(1). The circumstances of the case, which reveal a consensual relationship between the parties, bring the conduct squarely within the scope of that provision. That reasoning reflects the plain wording of s 64(2). The provision does not impose an inflexible rule that every case involving a complainant aged between 12 and 14 must be prosecuted as rape. Rather, it establishes a starting presumption which may be displaced by evidence demonstrating both capacity and consent.

14. Thus, the statutory scheme recognises three possible situations: Firstly, where the child lacked capacity and did not consent, the proper charge is rape. Secondly, where the child was capable of consenting but did not consent, the offence remains rape under s 65. The third possible situation is where the child was capable of consenting and did consent, the appropriate charge becomes having sexual intercourse with a young person under s 70.

15. The decisive factor in determining whether to proceed under s 64(2) or s 70 is consent and the capacity to give it. In *S v Promise Moyo* supra, the court in my view put emphasis on the following factors to be interrogated by prosecutors and courts;

- Whether the complainant was capable of consenting?
- Whether the complainant did in fact consent?

16. Where both questions are answered in the affirmative, the matter properly falls under s 70. Thus, in the present case, the evidence placed before the court demonstrates that the sexual intercourse occurred within the context of a romantic relationship between the accused and the complainant. In both counts, the facts as outlined by the State demonstrate that the sexual encounters occurred within the context of a voluntary relationship between the accused person and the complainant. The outline of the state's case in count both counts reads as follows:

> Outline of the State Case
>
> "1…
>
> 2.
>
> 3.
>
> 5. On an unknown date during the month of September 2025 at around 2330 hours and at Katumba farm, Bindura the complainant proceeded to the accused person's place of residence and entered inside his room and whilst inside the accused proposed to have sexual intercourse with her and accepted.
>
> 6. The accused removed all his clothes, he then removed the complainant's skirt and pant, mounted on top of her and inserted his erect penis into her and they had consensual intercourse once.
>
> Count 2
>
> 1…
>
> 2.
>
> 3. The accused is the boyfriend of the complainant.

> 4. On the 15th day of October 2023, at approximately 2100 hours, the complainant accompanied the accused person to his place of residence at Katimuda Farm, Bindura. Upon arrival, they entered the accused's room.
>
> 5. Whilst inside, the accused person proposed to have sexual intercourse with the complainant, and she consented."

17. There is nothing in the outline to suggest that the complainant was compelled to accompany the accused, that she resisted his advances, or that the accused employed force, threats, intimidation or deception in order to achieve his objective. Instead, the facts as presented portray a situation in which the complainant willingly accompanied the accused person to his place of residence and agreed to the sexual activity proposed by him.

18. The trial magistrate, in responding to the scrutiny query, stated that the facts placed before the court did not suggest incapacity or absence of consent. In my view, that conclusion cannot be faulted. I say so for the following reasons. There is nothing on record suggesting violence, coercion, intimidation, or exploitation. Further, the accused person admitted the essential elements of the offence under s 70(1) and pleaded guilty to that charge.

19. The scrutinising magistrate appears to have taken the view that the proper procedure would have been to charge the accused with rape and only later consider a competent verdict under s 70. While that approach may in certain circumstances be appropriate, it is not a mandatory procedural requirement.

20. The law does not compel prosecutors to frame a rape charge where the evidence available at the outset already indicates capacity and consent. It is therefore the court's view that insisting on such an approach would unnecessarily criminalise conduct under the more serious offence of rape in circumstances where the evidence clearly points elsewhere.

Conclusion

21. The record clearly disclosed a consensual relationship between the accused person and the complainant. There was no indication of force or coercion. The complainant is said to have consented to having sexual intercourse with the accused person. It is therefore my view that in those circumstances, the presumption of incapacity contemplated in s 64(2) was effectively rebutted. The trial magistrate correctly

appreciated that the matter fell within the exception contemplated by s 64(2) and properly proceeded under s 70(1).

22. I therefore find no irregularity or misdirection in the proceedings.

Resultantly, it is ordered that:

1. The proceedings in **S v MUDZVITI BNPP2431/25** are hereby certified as being in accordance with real and substantial justice.

MUSITHU J……